

25PR00441 Estate of Tyler Tibben

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-09-22

Motion: Petition for Final Distribution

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25pr00441-1>

Source SHA-256: 5b021a055fe9d881aa1468ae55f386441792e7e2e3db33d671fbddec5dc177c3

Tentative Ruling: Estate of Tyler Tibben

Case Number

25PR00441

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/22/2026 - 09:00

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

The following must be submitted:

Notice to Relevant State Entities. Notice of the petition must be served to any of the following state entities, if relevant:

Department of State Hospitals - If decedent, or his spouse, father, mother, or child, has been a patient in a state hospital preceding the date of decedent's death, notice must have been given to the Department of State Hospitals (Welf. & Inst. Code, § 7277.1)

Supplement to the Petition. The following defects require a supplement to the petition in order to comply with the relevant code section cited, or give the Court the necessary information to adjudicate the ability of the estate to be closed:

Escrow Statement. Real property was sold, but no Escrow Statement is on file. The escrow statement is a requisite filing to satisfy the final report requirements of the Probate Code (Prob. Code, § 10954(c)(1)), and the California Rules of Court (Rule 7.550). The requirements of Rule 7.550(b) mandate an escrow statement for any sale of real property must be submitted in support of the final report.

Extraordinary Fees. When extraordinary compensation is requested for the personal representative or attorney in Prayer, allegations must contain enough facts for the Court to exercise discretion pursuant to Probate Code section 10811 and CRC, Rule 7.703. A petition for extraordinary compensation must include a statement of facts on which the petition is based. The statement of facts must include the following information (Cal Rules of Ct 7.702):

Nature and difficulty of the tasks performed;

Results achieved;

Benefit of the services to the estate;

Specification of the amount requested for each category of services performed;

Hourly rate of each person performing services and the hours spent by each;

Detailed description of services performed demonstrating productivity of hours spent; and

Estimated hours performed for ordinary compensation, to compare to the size of the estate to the work performed.

In addition to these mandatory items in a statement of facts, the following information should be added:

Expertise, experience, and professional standing in the community of the person performing services (including not only the attorney requesting extraordinary compensation, but also the qualifications of any paralegals supervised by the attorney who performed extraordinary services); and

Size of the estate and length of administration.

Proposed Order. A proposed order must be submitted with relief that matches that requested in the petition. (Local Rule 1724(b), subd.(d).) Order must list every beneficiary and detail the shares to each, and must expressly state limitations or conditions on distribution. (Prob. Code, § 11603.) IF whereabouts of a distributee are unknown, the Proposed Order must provide for alternate distributees, and detail the share to which they are entitled per PC § 11603(c). It is highly recommended petitioner use Local Form SC-6029. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on September 21, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street

Santa Maria, CA 93454

US